

Chapter 2: SPS 320 - Administration and Enforcement

Subchapter I – Purpose and Scope

SPS 320.01 Purpose



- (1) The purpose of this code is to establish uniform statewide construction standards and inspection procedures for one- and 2-family dwellings and modular homes in accordance with the requirements of ss. 101.60 and 101.70, Stats
- (2) The purpose of this code is to establish uniform installation and inspection procedures for manufactured homes in accordance with the requirements of s. 101.96, Stats.

SPS 320.02 Scope

(1) The provisions of this code apply to all of the following:



All 1 and 2-
family
dwellings



Adult family
homes/community
based residential



Onsite
installation of
mobile home or
manufactured
homes



Design and
construction of
crawlspace, basement,
foundation under
manufactured home



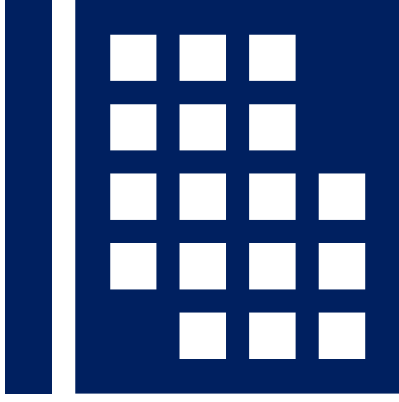
Garages, carports,
porches, stoops,
decks, balconies,
stairways, etc. & exit
structures

SPS 320.04 Applications

(1) NEW DWELLINGS.

- a) This code applies to **all dwellings, dwelling units and foundations for dwelling units**, for which the building permit application was made or construction commenced on or after the effective date of this code.

SPS 320.05 Exemptions



EXISTING DWELLINGS.

The provisions of this code shall not apply to dwellings and dwelling units, the construction of which was commenced prior to the effective date of this code, or to additions or alterations to such dwellings.

Subchapter II: Jurisdiction

SPS 320.06 Procedure for Municipalities

MUNICIPAL JURISDICTION.

- (a) General. 1. Except as provided in ss. 101.651 (1) and (2m), Stats., cities, villages and towns shall exercise jurisdiction over the construction and inspection of new dwellings.

Subchapter III – Definitions

Addition: New construction that increase dimensions

Alteration: enhancement, upgrade, modification to dwelling or systems

Approved: approval by department

Attached: continuous & weatherproof, floor, foundation between structures

Building System: plans, specifications, and documentation of manufactured building or components

Code: SPS 320-325

Subchapter III – Definitions

Dwelling:
Building with 1
or 2 units

Foundation:
structural
system used to
transfer weight
of building to
the earth

**Manufactured
Home:** Designed to
be a dwelling with or
without permanent
foundation, certified
by federal dept of
housing and urban
development

**Registered UDC
Inspection
Agency:**
registered within
the dept

Repair: process
of restoring to
original
soundness

UDC: Uniform
Dwelling Code

Subchapter IV – Approval and Inspection of 1 and 2-Family Dwellings

SPS 320.08 Wisconsin Uniform Building Permit

(1) WHERE REQUIRED. Except as provided under s. SPS 320.09 (9) (b), a Wisconsin uniform building permit shall be obtained from the municipality administering and enforcing this code or from a registered UDC inspection agency administering and enforcing this code in a municipality where the department has jurisdiction pursuant to s. 101.651 (3) (b), Stats., before any on-site construction, including excavation for a structure, may begin.

(2) INSPECTIONS. A person who obtains a Wisconsin uniform building permit from a registered UDC inspection agency shall retain the same agency to conduct the inspections for the project under s. SPS 320.10

SPS 320.09 Procedure for Obtaining Uniform Building Permit

(1) APPLICATION. Application for a Wisconsin uniform building permit shall be on forms obtained from the department, the municipality or the authorized UDC inspection agency administering and enforcing this code. No application shall be accepted that does not contain all the information requested on the form.

SPS 320.09 Procedure for Obtaining Uniform Building Permit

(2) Filing of permit applications

(a) *Construction or installation of a dwelling*

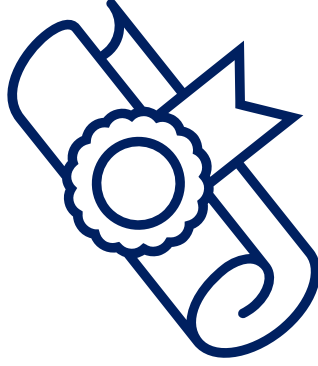


SPS 320.09 Procedure for Obtaining Uniform Building Permit

PLAN SUBMITTALS. At least **2 sets of plans** for all one- and 2-family dwellings shall be submitted to the municipality or authorized UDC inspection agency administering and enforcing this code, for examination and approval at the time the Wisconsin uniform building permit application is filed.

(11) TIME-SPAN FOR APPROVAL OR DENIAL. Action to approve or deny a uniform building permit application shall be completed within **10 business days of receipt of all forms**, fees, plans and documents required to process the application, and completion of other local prerequisite permitting requirements.

SPS 320.10 Inspections



(1) INSPECTOR CERTIFICATION.

All inspections, for the purpose of administering and enforcing this code, shall be performed by an **inspector certified** in accordance with ch. SPS 305 who holds the respective credential for the inspection performed.

SPS 320.10 Inspections

(2) GENERAL INSPECTION REQUIREMENTS.

(a) General. Inspections shall be conducted by the **municipality or authorized UDC inspection agency** administering and enforcing this code to determine if the construction or installations conform to the conditionally approved plans, the Wisconsin uniform building permit application and the provisions of this code.

(b) Inspection notice.

1. The applicant or an authorized **representative shall request inspections** from the municipality or authorized UDC inspection agency administering and enforcing this code.
2. Except as provided under subd. 3., **construction may not proceed beyond the point of inspection until the inspection has been completed.**
3. Construction may proceed if the inspection has not taken place by the end of the second business day following the day of notification or as otherwise agreed between the applicant and the municipality or authorized UDC inspection agency.

SPS 320.10 Inspections

3) INSPECTION TYPES. (a) General. The inspections described in pars. (b) to (i) shall be performed to determine if the work complies with this code.

(b) Erosion control inspection. **Erosion control inspections shall be performed concurrently with all other required construction inspections.** Additional inspections for erosion control may be performed by the delegated authority.

(c) Foundation excavation inspection.

1. The excavation for the foundation shall be inspected **after the placement of any forms or required reinforcement and prior to the placement of the permanent foundation material.**

2. If a drain tile system is required, by the local inspector or by groundwater levels in the excavation, the presence and location of bleeders used to connect the interior and exterior drain tile shall be inspected at the same time as the excavation.

Note: This excavation inspection may be used to determine the need for drain tile under s. SPS 321.17.

SPS 320.10 Inspections

- (d) Foundation reinforcement inspection. The placement of reinforcement shall be inspected where the reinforcement is required for code compliance.
- (e) Foundation inspection. The foundation shall be inspected after completion. Where dampproofing, exterior insulation or drain tile are required for code compliance, the foundation shall be inspected prior to backfilling.

SPS 320.10 Inspections

(f) Rough inspection.

1. A rough inspection shall be performed for each inspection category listed after the rough work is constructed but before it is concealed.

- a. The **basement floor** area.
- b. **General construction**, including framing.
- c. Rough **electrical**.
- d. Rough **plumbing**.
- e. Rough **heating, ventilating and air conditioning**.

SPS 320.10 Inspections

(f) Rough inspection.

2. All categories of work for rough inspections may be completed before the notice for inspection is given, provided the work has not been covered.
3. The applicant **may request one rough inspection or individual rough inspections.**
4. A separate fee may be charged for each individual inspection.

SPS 320.10 Inspections

(g) Insulation inspection. An inspection shall be made of the insulation and vapor retarders after they are installed but before they are concealed.

Final inspection. 1. Except as provided under subd. 2., the dwelling may not be occupied until a final inspection has been made that finds no critical violations of this code that could reasonably be expected to affect the health or safety of a person using the dwelling.

2. Occupancy may proceed in accordance with local ordinances if the inspection has not been completed by the end of the fifth business day following the day of notification or as otherwise agreed between the applicant and the department or municipality.

SPS 320.10 Inspections

Installation inspection. An inspection shall be performed on the installation of a manufactured home or modular home.

Note: The design and construction of manufactured homes is regulated by the federal Department of Housing and Urban Development under Title 24 CFR Part 3280.

(4) NOTICE OF COMPLIANCE OR NONCOMPLIANCE. (a) General. 1. Notice of compliance or noncompliance with this code shall be written on the building permit or another readily visible means and posted at the job site. Alternatively, the notice may be delivered electronically if mutually agreed upon by the applicant and inspector.

SPS 320.11 Suspension or Revocation of WI Uniform Building Permit

- (1) (a) The municipality or the registered UDC inspection agency administering and enforcing this code **may suspend or revoke any Wisconsin uniform building permit** where it appears that the permit or approval was obtained through fraud or deceit, where the applicant has willfully refused to correct a violation order or where the inspector is denied access to the premises.
- (b) **No construction may take place on the dwelling after suspension or revocation of the permit.**

SPS 320.14 Approval Procedures

- (1) APPLICATION FOR APPROVAL. (a) An application for approval of any modular home, building system or component shall be submitted to the department in the form required by the department, along with the appropriate fees in accordance with s. SPS 302.34.
- (b) The department shall review and make a determination on an application for approval of a modular home, building system or component **within 3 months**.

Subchapter V – Approval and Inspection of Modular Homes and Their Components

SPS 320.12 Scope.

This part shall govern the design, manufacture, installation and inspection of modular homes, manufactured building systems and the components of the building systems displaying the Wisconsin insignia.

SPS 320.13 Manufacture, sale and installation of homes.

(1) MANUFACTURE AND SALE. No modular home, manufactured building system or component of the building system subject to this part shall be manufactured for use, sold for initial use or installed in this state unless it is **approved by the department and it bears the Wisconsin insignia issued or a state seal or an insignia reciprocally recognized by the department.**

Subchapter VI – Approval of Products

SPS 320.18 Building product approvals.

(1) VOLUNTARY APPROVAL. (a) Materials, equipment and products regulated by this code may receive a **written approval from the department** indicating code compliance.

(b) 1. Approval of materials, equipment and products shall be based on sufficient data, tests and other evidence that prove the material, equipment or product is in compliance with the standards specified in this code.

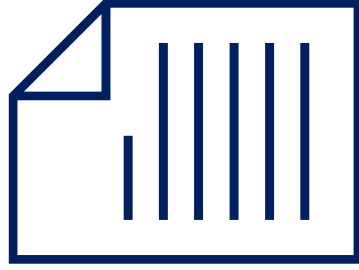
2. Tests, compilation of data, and calculations for materials, equipment and products shall be conducted by a qualified independent third party.

(2) ALTERNATE APPROVAL. (a) Materials, equipment and products which meet the intent of this code and which are not approved under sub. (1) shall be permitted if approved in writing by the department.

The only difference between Voluntary Approval and Alternate Approval is the use of the word “intent”.

Subchapter VII – Variances, Appeals, Violations, and Penalties

SPS 320.20 Municipal Variance from the Code



Any municipality exercising or intending to exercise jurisdiction under this code may apply to the department for a variance permitting the municipality to adopt an ordinance not in conformance with this code. The department shall review and make a determination on a municipal request to adopt an ordinance not in conformance with this code within **60 business days of receipt of the request**.

SPS 320.22 Penalties and Violations

(1) VIOLATIONS.

No person shall construct or alter any dwelling in violation of any of the provisions of this code.

(a) Injunction. When violations occur, the department may bring legal action to enjoin any violations.

(b) Ordinances. This code shall not affect the enforcement of any ordinance or regulation, the violation of which occurred prior to the effective date of this code.

SPS 320.22 Penalties and Violations

- (2) PENALTIES. (a) Pursuant to ss. 101.66 and 101.77, Stats., whoever violates this code shall forfeit to the state **not less than \$25 nor more than \$500 for each violation**. Each day that the violation continues, after notice, shall constitute a separate offense.
- (b) Any person violating any rule of this code applying to manufactured homes is subject to the penalties prescribed in s. 101.94 (8), Stats.
- (3) MUNICIPAL ENFORCEMENT. Any municipality which administers and enforces this code may provide, by ordinance, remedies and penalties for violation of that jurisdiction exercised under s. 101.65, Stats. These remedies and penalties shall be in addition to those which the state may impose under subs. (1) and (2).

Subchapter IX – Adoption of Standards

SPS 320.24 Adoption of Standards

- (3) ALTERNATE STANDARDS. (a) Alternate standards that are equivalent to or more stringent than the standards incorporated by reference in this chapter may be used in lieu of incorporated standards when approved by the department or if written approval is issued by the department in accordance with par. (b).
- (b) 1. a. Upon receipt of a fee and a written request, the department may issue an approval for the use of the alternate standard.
- b. The department shall review and make a determination on an application for approval within **40 business days of receipt of all forms**, fees, and documents required to complete the review.